



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 42 judgments and / or decisions on Thursday 16 May 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Thursday 16 May 2019

[Halabi v. France \(application no. 66554/14\)](#)

The applicant, Mr Simon Halabi, is a British national who was born in 1958 and lives in London (United Kingdom). The case concerns the conformity of a home visit conducted on the basis of the Town Planning Code with the right to respect for the home as secured under Article 8 of the European Convention on Human Rights.

On 19 March 2009 two officials from the Grasse Town Planning Department conducted a visit to a housing development belonging to the Immofra company, in accordance with Article L. 461 1 of the Town Planning Code, in order to inspect the work that had been carried out. The officials drew up a report noting a number of constructions which were at variance with the planning permit and the declaration of work. The visits were conducted without prior permission from and in the absence of the owner or the occupier of the premises.

On 31 January 2013 Mr Halabi, the occupier, was charged by the investigating judge of building without planning permission and of unlawfully carrying out work subject to prior declaration. On 8 July 2013 Mr Halabi brought an action to annul both the administrative offence report of 19 March 2009 and the entire procedure. An Investigations Decision of the Aix-en-Provence Court of Appeal dismissed his action. Mr Halabi lodged an appeal on points of law. The Court of Cassation dismissed the appeal on the grounds that the authorities had not “used coercion”. On 26 January 2017 the Grasse Criminal Court fined the applicant 5,000 euros in respect of the facts noted during the impugned visit and for other infringements of the Town Planning Code.

The applicant alleges that the visit conducted by the town planning officials on 19 March 2009 infringed his right to respect for his home as set forth in Article 8 of the Convention.

[Tasev v. North Macedonia \(no. 9825/13\)](#)

The applicant, Slavčo Tasev, is a Macedonian/citizen of the Republic of North Macedonia citizen of the Republic of North Macedonia who was born in 1959 and lives in Štip (North Macedonia).

The case concerns the authorities' refusal to grant Mr Tasev's request to have his ethnicity entry in the electoral roll for judges changed.

In September 2012 a vacancy notice was published in respect of five posts on the State Judicial Council (SJC). Shortly afterwards Mr Tasev lodged a request with the Ministry of Justice for his ethnicity entry in the electoral roll to be changed from that of Bulgarian to Macedonian. In October 2012 the Ministry of Justice refused his request, arguing in particular that the change was intended to secure the attainment of an electoral right concerning the election of members of the SJC. A change of ethnicity entry sought exclusively for the attainment of such a right after the announcement for the election would put other judges in a “disadvantageous position”.

Mr Tasev appealed, but the Administrative Court upheld the Ministry's decision. The court mainly referred to the electoral rolls of 2006, 2008 and 2010, in which Mr Tasev's ethnic identity as Bulgarian was established.

Mr Tasev appealed against this decision to the Higher Administrative Court; his appeal was, however, dismissed in November 2012.

In December 2012 the SJC informed him that it had struck out his name of the list of candidates for election to the SJC, because of the fact that his declared ethnicity (Macedonian) had not corresponded with the official records.

Relying on Article 6 § 1 (right to a fair hearing) and Article 8 (right to respect for private life), Mr Tasev complains in particular about the authorities' refusal to change his ethnicity in the electoral roll, as that refusal had violated his right to an ethnic identity.

[Kwiatkowski v. Poland \(no. 58996/11\)](#)

The applicant, Robert Kwiatkowski, is a Polish national who was born in 1961 and lives in Warsaw. He was the Chairman of the Board of Directors of the public television channel from 1998 to 2004. The case concerns the adoption by the *Sejm* of a report on allegations of corruption in the framework of an amendment to the Broadcasting Act.

In December 2002 a national newspaper published an article concerning bribery in connection with the legislative procedure for the amendment of the Broadcasting Act. According to the article, Lew Rywin, a well-known film producer, acting on the instructions of a purported "group in power", had offered his assistance in return for favours.

In January 2003 the *Sejm* set up a parliamentary commission of inquiry into the circumstances of the case. It went on to reject the report submitted by the commission, which had found that Mr Rywin had been acting alone, and in September 2004 it adopted another report, which named a number of public figures who had been involved in bribery. That report was published in the media.

The applicant subsequently brought an action for the protection of his reputation, which was dismissed in November 2009 by the Warsaw Regional Court. That court ruled that the alleged infringement had not been constituted since the applicant was a public figure and the commission of inquiry, which was a parliamentary means of supervising the Government, had operated within the bounds of the Constitution and the law. It observed that the applicant had at no time been charged with or convicted of the facts in question.

The applicant appealed, arguing that it had been the *Sejm* rather than a court which had found him guilty of a criminal offence. The Warsaw Court of Appeal dismissed his appeal in April 2010 on the following grounds: the commission had been lawfully set up in accordance with the relevant legislative provisions; the adoption of the report had been a particular right of the *Sejm*, which had not decided on the question of criminal responsibility but had issued an opinion which did not replace a possible judicial decision; the applicant had been able to argue his case before a tribunal and the report had only concerned his public activities. By order of 17 March 2011 the Supreme Court declined to adjudicate on the applicant's appeal.

Between 2004 and 2008 an inquiry was held into the alleged corruption surrounding the legislative procedure to amend the Broadcasting Act, but that inquiry was subsequently discontinued as statute-barred.

Relying on Article 6 § 2 (presumption of innocence) and Article 8 (right to respect for private life), the applicant complains that the report infringed his right to presumption of innocence and damaged his reputation. Lastly, under Article 13 (right to an effective remedy) read in conjunction with Article 8, he alleges that he had no effective remedy.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Name	Main application number
Tadevosyan v. Armenia	69936/10
Grasser v. Austria	37898/17
Gasimov v. Azerbaijan	6629/09
Golić and Others v. Bosnia and Herzegovina	51441/16
Kamenova v. Bulgaria	61731/11
Mihalevi v. Bulgaria	63481/11
K.A. v. Greece	18784/15
Lamda Vita AEE v. Greece	76971/12
Bangó and Others v. Hungary	68366/14
Braczkó and Others v. Hungary	58597/14
Gajdos and Others v. Hungary	6536/17
Hideg and Others v. Hungary	33328/18
Jávor and Others v. Hungary	46953/14
Cudak v. Lithuania	77265/12
Rušienė v. Lithuania	59413/17
Karadža and Vaskov v. North Macedonia	79037/12
Veličkovski v. North Macedonia	12977/10
Ziaja v. Poland	45751/10
Antohi v. Romania	5248/16
Cadar and Others v. Romania	62868/09
Călin and Others v. Romania	20049/15
Cocuz v. Romania	14968/16
Grancea and Others v. Romania	1659/16
Jipa v. Romania	53158/14
Marius-Silviu Popescu and Others v. Romania	53013/15
Pădureanu and Others v. Romania	25404/15
Suditu and Others v. Romania	44216/15
Țurlea and Others v. Romania	25480/15
Vasiliu and Others v. Romania	46404/15
Ananyev and Panov v. Russia	23591/12
Krasnov and Others v. Russia	51315/17
Matviyenko and Others v. Russia	44255/17
Pogrebov v. Russia	50999/15
Shirokzhukhov v. Russia	50995/15
Timofeyev and Others v. Russia	69506/17
Vetvitskiy and Others v. Russia	11383/17
Bezmyanny v. Ukraine	14866/11
Kapshtan v. Ukraine	56224/10
Logvinenko v. Ukraine	41203/16

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.